

HOUSE No. 949

The Commonwealth of Massachusetts

PRESENTED BY:

John R. Gaskey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure safe drinking water for state funding eligibility in the Commonwealth of Massachusetts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/16/2025</i>
<i>Chris Thibeault</i>	<i>140 Riley Ave Somerset, MA 02726</i>	<i>1/16/2025</i>

HOUSE No. 949

By Representative Gaskey of Carver, a petition (accompanied by bill, House, No. 949) of John R. Gaskey and Chris Thibeault for legislation to ensure safe drinking water for state funding eligibility. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure safe drinking water for state funding eligibility in the Commonwealth of Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Purpose

2 The purpose of this act is to ensure that municipalities in the Commonwealth of
3 Massachusetts meet state-defined standards for safe drinking water in order to qualify for state
4 funding or grants, thereby protecting public health and encouraging local governments to
5 prioritize water quality.

6 SECTION 2. Definitions

7 For the purposes of this act, the following terms shall have the meanings assigned below:

8 (a) Safe Drinking Water: Water that meets or exceeds the standards established by the
9 Massachusetts Department of Environmental Protection (MassDEP) in accordance with the
10 federal Safe Drinking Water Act (42 U.S.C. § 300f et seq.).

(b) Municipality: A city or town within the Commonwealth of Massachusetts.

(c) State Funding or Grants: Financial assistance provided by the Commonwealth, including but not limited to infrastructure grants, development funding, or other forms of aid distributed to municipalities.

(d) Massachusetts Department of Environmental Protection (MassDEP): The state agency responsible for regulating and ensuring environmental quality, including water resources.

SECTION 3. Eligibility Requirements for State Funding or Grants

(a) Water Quality Standards: To be eligible for state funding or grants, a municipality must provide certification from MassDEP demonstrating that its public water system complies with all federal and state water quality regulations.

(b) Annual Testing: Municipalities must conduct annual water quality testing and submit results to MassDEP. The testing shall include, but not be limited to, analysis for contaminants such as lead, arsenic, nitrates, perfluoroalkyl and polyfluoroalkyl substances (PFAS), and bacterial pathogens.

(c) Action Plan for Noncompliance: Municipalities found to be out of compliance with safe drinking water standards shall be required to submit a detailed remediation plan to MassDEP within 90 days of notification. State funding eligibility will be suspended until MassDEP certifies the municipality's compliance.

SECTION 4. State Assistance for Compliance

(a) Technical Support: The Commonwealth shall provide technical and advisory support to municipalities seeking assistance to meet drinking water standards.

(b) Funding for Upgrades: Municipalities applying for state funding or grants for water infrastructure improvements shall be given priority consideration if they submit a plan for addressing deficiencies identified in water quality testing.

(c) Emergency Exceptions: In cases where a municipality faces an immediate public health crisis related to water quality, the Commonwealth may allocate emergency funding to address the issue, even if the municipality is otherwise ineligible under this act.

SECTION 5. Enforcement

(a) MassDEP shall monitor compliance with the requirements of this act and establish a reporting system for municipalities to demonstrate ongoing adherence to water quality standards.

(b) Municipalities that falsify water quality reports or fail to meet reporting requirements shall be subject to penalties, including fines and temporary suspension of state funding eligibility.

SECTION 6. Public Reporting

MassDEP shall publish an annual report detailing the water quality status of all municipalities in the Commonwealth. The report shall include a list of municipalities in compliance, municipalities under remediation, and municipalities that have failed to meet safe drinking water standards.

SECTION 7. Effective Date

This act shall take effect on January 1, 2026, allowing municipalities sufficient time to prepare for compliance with its provisions.

52 SECTION 8. Severability

53 If any provision of this act is found to be invalid or unenforceable, the remaining

54 provisions shall remain in full force and effect.